

28 November 2024

Ref: HB:CM
File: 267150

[REDACTED]
[REDACTED]
Elaine, VIC, 3334

By email only: [REDACTED]

Dear Owen,

Enquiry regarding report for Lal Lal Wind Farm, Planning Permit PL-SP/05/0461/2

I write in response to your email dated 18 October 2024 enquiring about a report titled "LAL LAL WIND FARM COMPLIANCE Baseline Noise Monitoring 640.11872-R01-v1.1 | 16 February 2021," in relation to Planning Permit PL/SP/05/0461/C (the planning permit).

Council understands that you wish to confirm whether it holds a copy of this report, and if so, the date it was received. Council previously responded to your request to reiterate our correspondence to you from 20 June 2024, that information requests must be made under the *Freedom of Information Act 1982*. This remains Council's position.

As advised several times in previous correspondence, the Minister for Planning is the responsible authority for administration and enforcement of conditions relating to noise testing and compliance under the planning permit. On this basis, Council is unable to provide a response regarding the enforcement of any conditions relating to noise testing and compliance.

I note that you have already lodged an FOI with the Department of Transport and Planning (DTP ref: CS015467) in relation to the abovementioned report, and a response was issued that addresses your question about its status. Any further questions about this response should be directed to DTP.

Yours sincerely



Henry Bezuidenhout
Executive Manager Community Planning and Development